

SUPPLEMENT TO LEVEL III APPEAL

Reference Z006179-091626, appealing the Level II decision of September 14, 2026 in Z005911-061526

Submitted for inclusion in the Level III record before the October 19, 2026 Board meeting

I submit this supplement to my Level III appeal and ask that it be included in the Level III record provided to the Board of Trustees. It adds one ground and one remedy. All previously stated grounds and remedies are unchanged and are preserved.

Additional Ground

11. The July 7, 2026 suspension and criminal trespass notice does not comply with Texas Education Code Section 37.105, and no level below has addressed it.

On July 7, 2026, Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri issued a Summary of Investigation suspending me from every Iron Horse Aquatics event through December 31, 2026 and stating that the District would pursue criminal trespass enforcement. Iron Horse Aquatics operates at the District's natatorium. The effect of that letter is to bar a parent from a District facility.

Section 37.105(a) permits a school district to refuse entry to or eject a person from property under the district's control only where the person refuses to leave peaceably on request and either poses a substantial risk of harm to any person, or behaves in a manner inappropriate for a school setting after a school administrator, school resource officer, or school district peace officer has issued a verbal warning that the behavior may result in refusal of entry or ejection, and the person persists in that behavior.

None of those conditions is present here. I was never asked to leave District property and never refused to do so. The July 7, 2026 letter was issued by coaching staff, not by a school administrator, a school resource officer, or a school district peace officer. I have never received a verbal warning of the kind Section 37.105(a)(2)(A) describes, and no record of such a warning has been produced to me, although Section 37.105(c) requires the District to maintain one.

Section 37.105(d) requires that, at the time a person is refused entry or ejected, the district provide that person written information explaining the appeal process established under Section 37.105(h). I received no such information on or after July 7, 2026. Section 37.105(h) provides for appeal of that decision to the Board of Trustees.

The District therefore stands in one of two positions. If the July 7, 2026 action is a refusal of entry or ejection under Section 37.105, it was taken by persons the statute does not authorize, without the predicate conduct the statute requires, without the warning record Section 37.105(c) requires the District to keep, and without the written appeal notice Section 37.105(d) requires. If it is not an action under Section 37.105, then four coaching staff members barred a parent from a District facility and invoked criminal trespass enforcement under no identified authority and subject to no identified appeal process.

I asked the District in writing on September 17, 2026 to state which of those positions it takes and to produce the records Section 37.105 requires. That request is part of this record.

The District has never identified the appeal process applicable to the July 7, 2026 action. Section 37.105(h) provides for appeal of a refusal of entry or ejection to the Board of Trustees, and this proceeding is that appeal.

No determination below addresses Section 37.105. The July 20, 2026 finding does not mention it. The August 12, 2026 decision does not mention it. The September 14, 2026 decision does not mention it, and states instead that the consequences were based solely on events at a swim meet in Arkansas on June 5, 2026.

Additional Remedy

11. Set aside the July 7, 2026 refusal of entry or ejection, or in the alternative determine on the record the authority under which it was issued, and direct that the District produce the determination, the verbal warning record required by Section 37.105(c), and the written appeal information required by Section 37.105(d). Direct that no refusal of entry or ejection issue in the future except in compliance with Section 37.105.

I preserve all objections previously stated and all grounds and remedies set out in my Level III appeal.

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